

words, they don't appear to be behaviors tied to prosecution of the lawsuit.

Plaintiff complains that Defendant has already had the opportunity to file a cross complaint, and should not be given another. But there was no bad faith in Defendant's unsuccessful bid to file a cross complaint. Defendant is self-represented, and attempted to file a cross-complaint within an amended Answer. This was a procedural error, nothing more. Defendant then filed an appropriate motion for leave to file a cross complaint the very next day after the court on the unsuccessful attempt. This is not the behavior of a party acting in bad faith.

Considering that the spirit of the law is one in which courts should be liberal in granting such requests in the absence of bad faith, this court will allow leave to file a cross complaint but for only the third and fourth causes of action.

Disposition

Defendant's Motion is granted, but only for the third and fourth causes of action.

Defendant must file this Cross Complain within 5 calendar days of this ruling.

Defendant also to file the order on this Motion.

7. 9:00 AM CASE NUMBER: L25-06618

CASE NAME: TD BANK USA, N.A. VS. J BUSTILLOHERRERA

***HEARING ON MOTION FOR DISCOVERY FOR ORDER DEEMING REQUEST FOR ADMISSIONS TO DEFENDANT ADMITTED**

FILED BY: TD BANK USA, N.A.

TENTATIVE RULING:

Plaintiff filed a motion to deem as true matters requested for admission by the Defendant. The Motion and its supporting documents are timely.

This Motion is unopposed. However, this motion was originally scheduled for 2/24/06, but was rescheduled for 3/24/26. And though there was mail notice for the 2/24/26 appearance, it does not appear that the court notified Defendant of the new date.

This was the court's mistake and it extends its apology.

Disposition

Motion will be continue to 6/2/26, 9am.

Court will notify Defendant.

8. 9:00 AM CASE NUMBER: L25-09151

CASE NAME: JEREES LARKINS VS. HOUSING AUTHORITY OF THE COUNTY OF CONTRA COSTA
HEARING ON DEMURRER TO: DEF HOUSING AUTH OF CCC DEMURRER TO PLN COMPLAINT
FILED BY: HOUSING AUTHORITY OF THE COUNTY OF CONTRA COSTA

TENTATIVE RULING:

Background

Defendant brings this Demurrer (hereinafter, Motion), filed on 12/3/25, arguing that Plaintiff's Complaint is barred by the doctrine of claim preclusion, or res judicata, in that Plaintiff already pursued another matter against Defendant - namely, the lawsuit in C24-03348 - with identical issues and facts.

Defendant filed a declaration indicating that they attempted to meet and confer with Plaintiff about the issues in this Motion, but Plaintiff did not respond.

Defendant also filed a request for judicial notice of the case in C24-03348.

Analysis

The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading.

Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.*

However, a demurrer also lies where the facts alleged in the complaint or matters judicially noticed show that plaintiff is seeking relief from the same defendant on the same cause of action as in a *pending* action. CCP 430.10(c). The plain language of Section 430.10(c) of the CCP does not require that judgment must be reached in the prior action for the doctrine to apply, only that, "There is another action pending between the same parties on the same cause of action." Also see, *Hamilton v. Asbestos Corp., Ltd.* (2000) 22 C4th 1127, 1146. Full recovery for a cause of action must be obtained in a single lawsuit. A plaintiff cannot split a cause of action into successive suits against the same person. *Hamilton v. Asbestos Corp., Ltd.* (2000) 22 C4th 1127, 1145.

While the rule against case-splitting is in a part a rule of abatement, it is also in a part an application of the doctrine of *res judicata*. *Id.* at 1146. Indeed, the purpose of *res judicata* is to preclude a plaintiff from attempting to divide a primary right and enforce it in two suits. The doctrine accomplishes this by either of two means, one which occurs when the first suit is still pending when the second is filed. *Lincoln Property Co., N.C.,*

Inc. v. Travelers Indemnity Co. (2006) 137 Cal.App.4th 905, 912; also see *Wulfjen v. Dolton* (1944) 24 Cal.2d 981, where plaintiff was estopped from second lawsuit even though prior lawsuit against same defendants was on appeal and judgment was not final).

“A claim raised in a second suit is ‘based on the same cause of action’ as one asserted in a prior or pending action if they are both premised on the same ‘primary right.’ The plaintiff’s primary right is the right to be free from a particular injury, regardless of the legal theory on which liability for the injury is based.” *Gillies v. JPMorgan Chase Bank, N.A.* (2017) 7 Cal.App.5th 907, 914. “The scope of the primary right therefore depends on how the injury is defined. A cause of action comprises the plaintiff’s primary right, the defendant’s corresponding primary duty, and the defendant’s wrongful act in breach of that duty.” *Federation of Hillside and Canyon Assns. v. City of Los Angeles* 126 Cal.App.4th 1180, 1202.

While it is true that one wrongful act may lead to violations of different primary rights, and thus enable the pursuit of different claims, multiple, discrete wrongful acts by a party may only invade a single primary right. See *Pointe San Diego Residential Community, L.P. v. Procopio, Cory, Hargreaves and Savitch, LLP* (2011) 195 Cal.App.4th 265, (where, despite the allegation of a number of discrete acts of attorney malpractice (i.e., a number of different breaches of a duty) over the course of a single representation, the plaintiff-client had only one primary right, namely, to be free of negligence by client’s attorneys).

Courts have also used a transactional analysis when evaluating whether claims are the same for purposes of *res judicata*. Under a transactional analysis approach, claims are the same if they arise from the same transaction or series of connected transactions. 5th and *LA v. Western Waterproofing Co., Inc.* (2023) 87 Cal.App.5th 781, 791. “What factual grouping constitutes a ‘transaction,’ and what groupings constitute a ‘series,’ are to be determined pragmatically, giving weight to such considerations as whether the facts are related in time, space, origin, or motivation, whether they form a convenient trial unit, and whether their treatment as a unit conforms to the parties’ expectations or business understanding or usage.” *Id.*

For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. “Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227. However, leave to amend should not be granted where, in

all probability, amendment would be futile. *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685.

The court takes judicial notice of the pleadings in the instant matter, as well as the Complaint in the case, C24-03348 (hereinafter, Case 1).

In the instant matter, the Complaint, filed 8/18/25, Plaintiff alleges a number of causes of action which all stem from the housing rental agreement between the parties, and which cover a time period beginning with the agreement, on 8/4/23, until 5/7/24. The allegations are that Defendant was the landlord, and center on the conduct by the Defendant, namely, that Defendant failed to maintain a habitable rental residence and that, rather than address the habitability issues, Defendant engaged in a pattern of harassment to force Plaintiff out of the residence. The harassing conduct is not alleged with specificity, other than to claim intimidation and retaliation by virtue of refusing to make any repairs.

In the Complaint for case C24-03348, filed 12/11/24, the factual allegations appear to cover a broader time period, beginning 8/4/23 and then onward, covering “all relevant times.” There is nothing in the Complaint to suggest the claims are limited to events occurring after 5/7/24. The causes of action stem from the same rental agreement as in the instant matter, and involve the same allegations of conduct, that Defendant failed to maintain a habitable rental residence and that, rather than address the habitability issues, Defendant engaged in a pattern of harassment to force Plaintiff out of the residence by refusing to make repairs.

The only matters of difference between the two cases that are apparent to the court are the causes of action and the time periods at issue. (The court notes, however, that the time period in the instant matter is completely subsumed by that in Case 1.)

But the primary rights at issue in both cases are identical: The Plaintiff’s right to live in habitable conditions, as well as to be free from harassment. In fact, the court struggles to see any difference at all in the factual allegations between the two cases.

Plaintiff does not dispute that the two cases stem from the same agreement between the parties, and the same pattern of conduct by the Defendant. Rather, Plaintiff argues that the two cases cover different time periods. That does not appear to be the case, as noted above. But even assuming that this is true, for the sake of argument, *res judicata* does not only apply to matters covering the same time periods. The test is whether the two cases involve different primary rights. The Plaintiff is not allowed to split one claim into different lawsuits.

It is also unclear whether the Plaintiff is alleging multiple acts by the Defendant, other than the continuous failure to maintain a habitable residence. But even assuming the Defendant engaged in multiple acts, involving multiple breaches of duty, the primary rights at issue would remain the same.

In sum, the lawsuit in the instant matter involves the same primary rights and the same parties as the lawsuit in Case 1, all stemming from the same transaction: one relationship, that of landlord and tenant; with a single rental agreement at the core; and the same pattern of behavior, namely, failure to maintain and repair. The claims in the two lawsuits are the same and Plaintiff cannot pursue both.

The only remaining issue is whether to grant Plaintiff leave to amend. The court feels that there is little the Plaintiff can do to amend the Complaint without a further invocation of Res Judicata. The Plaintiff has not alluded to any other primary rights or transactions that would legitimately lead to a second and proper lawsuit. But the court defers to longstanding authority that it is to grant leave to amend with liberality.

Disposition

Defendant's Demurrer to all counts in the Complaint is sustained.

Plaintiff to file amended Complaint within 10 days of this order.

Defendant to file Order.

9. 9:00 AM CASE NUMBER: L25-12293

CASE NAME: WELLS FARGO BANK, N.A. VS. ENA ATTIOGBE

*HEARING ON MOTION IN RE: MTN TO STRIKE PORTIONS OF PLTFS COMPLAINT

FILED BY:

TENTATIVE RULING:

Background

Defendant filed a Motion to Strike portions of the Plaintiff's Complaint. Plaintiff filed a timely response, and Defendant then filed a Reply.

Analysis

The Complaint alleges that Defendant breached a contract with Plaintiff in which Plaintiff suffered damages of over \$13,000, and that, as a consequence, Plaintiff is entitled to attorney's fees and other costs. Plaintiff attached a copy of the purported agreement between the parties.